

Arvind Kumar @ Arvind Sahu v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 24 May 2022 · Writ-C No. 13640 of 2022 · WRIT - C No. - 13640 of 2022 · **Writ disposed; liberty to file para 6.8 objection; coercive action stayed.**

HEADNOTE

Without examining merits, the Allahabad High Court disposed of a challenge to a demand notice and recovery citation by granting liberty to file an objection under paragraph 6.8 of the U.P. Electricity Supply Code, 2005, to be decided after hearing within a fixed time, and stayed coercive action for eight weeks or until disposal of the objection, whichever was earlier. The plea that the assessment stood to be withdrawn under paragraph 8.2(x)(h) after the Special Court accepted a final report was not decided.

FACTUAL SUMMARY

The petitioner challenged a demand notice dated 12 December 2018 and a recovery citation dated 28 August 2019, and sought a mandamus that the distribution licensee withdraw the assessment after a final report dated 19 March 2019 was accepted by the Special Court on 12 March 2022, invoking paragraph 8.2(x)(h) of the U.P. Electricity Supply Code, 2005. Counsel for the licensee stated on instructions that the petitioner could file an objection to the demand, which would be decided in a time-bound manner.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

objection to demand with stay of recovery

HOLDING

Without expressing any opinion on merits, the writ was disposed of with liberty to the consumer to submit an objection under paragraph 6.8 of the U.P. Electricity Supply Code, 2005 within four weeks; if so submitted, the licensee shall decide it in accordance with law within the next four weeks after affording a reasonable opportunity of hearing, and no coercive action shall be taken on the impugned demand for eight weeks or until disposal of the objection, whichever is earlier. ¶ 3-5

PRINCIPLE TAGS

alternative-remedy-statutory-appeal-6.8 The Court declined merits examination of the demand and recovery and relegated the consumer to an objection under paragraph 6.8 of the Supply Code, 2005, to be decided in accordance with law. ¶ 3-4

pending-6.8bi-objection-directed-for-reasoned-disposal-with-stay Liberty was granted to file a paragraph 6.8 objection within four weeks, with a direction for disposal after hearing within the next four weeks, and a limited stay of coercive action on the impugned demand. ¶ 4-5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE DEMAND NOTICE DATED 12.12.2018 AND RECOVERY CITATION DATED 28.08.2019 WERE LIABLE TO BE QUASHED

The Court expressly declined to examine the merits. ¶ 4

NOT DECIDED — WHETHER PARAGRAPH 8.2(X)(H) OF THE SUPPLY CODE, 2005 REQUIRED WITHDRAWAL OF THE ASSESSMENT AFTER THE SPECIAL COURT ACCEPTED THE FINAL REPORT DATED 19.03.2019

Invoked in the prayer; not decided. ¶ 2

